

Opinion of the Court

courts to reach a predetermined result in this case.” *Id.*, at 191. In accord with the District Court, the Second Circuit responded that “§ 8772 does not compel judicial findings [or results] under old law”; “rather, it retroactively changes the law applicable in this case, a permissible exercise of legislative authority.” *Ibid.* Congress may so prescribe, the appeals court noted, “even when the result under the revised law is clear.” *Ibid.*

To consider the separation-of-powers question Bank Markazi presents, we granted certiorari, 576 U. S. 1094 (2015), and now affirm.¹⁶

II

Article III of the Constitution establishes an independent Judiciary, a Third Branch of Government with the “province and duty . . . to say what the law is” in particular cases and controversies. *Marbury v. Madison*, 1 Cranch 137, 177 (1803). Necessarily, that endowment of authority blocks Congress from “requir[ing] federal courts to exercise the judicial power in a manner that Article III forbids.” *Plaut v. Spendthrift Farm, Inc.*, 514 U. S. 211, 218 (1995). Congress, no doubt, “may not usurp a court’s power to interpret and apply the law to the [circumstances] before it,” Brief for Former Senior Officials of the Office of Legal Counsel as *Amici Curiae* 3, 6, for “[t]hose who apply [a] rule to particular cases, must of necessity expound and interpret that rule,” *Marbury*, 1 Cranch, at 177.¹⁷ And our decisions place off

¹⁶ Respondents suggest that we decide this case on the ground that § 201(a) of the TRIA independently authorizes execution against the assets here involved, instead of reaching the constitutional question petitioner raises regarding § 8772. Brief for Respondents 53. The Court of Appeals, however, did not “resolve th[e] dispute under the TRIA,” 758 F. 3d, at 189, nor do we. This Court generally does not decide issues undressed on first appeal—especially where, as here, the matter falls outside the question presented and has not been thoroughly briefed before us.

¹⁷ Consistent with this limitation, respondents rightly acknowledged at oral argument that Congress could not enact a statute directing that, in “*Smith v. Jones*,” “*Smith wins*.” Tr. of Oral Arg. 40. Such a statute